

Douglas B Jacobs SBN 84153  
20 Independent Circle  
Chico, CA 95973  
(530) 342-6144

James J. Thompson SBN 63003  
1660 Humbolt Rd.  
Chico, CA 95928  
(530) 343-3695  
The Court will prepare the order.

**7-8. 24CV01908 Bryant, Jina v. Hodari MD Dermatology, Inc et al.**

*EVENT: (1) Plaintiff's Motion to Compel Further Responses to Request for Production of Documents, Set One, and for Sanctions*

*(2) Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set One*

In light of the supplemental responses, the motions are moot. As to the question of sanctions, the issue boils down to whether the 10-day extension provided by Plaintiff's counsel was reasonable. Under the circumstances the Court finds that it was. Importantly, the initial boiler plate objection only responses were obviously deficient. The discovery requests appear to be appropriate and at least some sort of substantive response should have been provided initially. Because the original responses were so deficient, this minimizes the obligation to provide a generous extension in this Court's view.

Additionally, the fact trial is on the horizon militates against any type of lengthy extension. Lastly, Defendant waited until the day before the extension expired to seek essentially a second extension. Under these circumstances, the Court finds Plaintiff was not premature in filing this motion. Defendant is sanctioned in the total sum of \$1,500 payable within 20 days of this order.

Plaintiff shall prepare the form of order.

**9. 24CV02337 Fink, Paul et al v. Fink, Erika et al.**

*EVENT: Defendant Erika Fink's Motion to Stay the Action Pending Resolution of the Related Divorce Proceedings*

The motion for stay is granted. However, the Court sees no reason to stay discovery, consequently discovery will remain open. Although the Court is not finding any potential conflicts between this case and the Family Law case on the surface, the Court is erring on the side of caution.

Any party may file a motion to lift the stay once the Family Law case has adjudicated all issues with respect to the characterization of property.

Defendant shall prepare the form of order within two weeks.

**10. 25CV00186 Estate of Tyler Simmons et al v. Sladariu, Benjamin**

*EVENT: Motion to Compel Compliance with Deposition Subpoena of Business Records*

Preliminarily, the District Attorney's objections were not waived. Privileges are preserved unless the holders fail to object in a proceeding where they have standing and the opportunity to claim them. (*Monarch Healthcare v. Superior Court* (2000) 78 Cal.App. 4th 1282, 1290) [Emphasis Added] Additionally, the DA has represented that it has produced all documents other than those that were not generated by the DA and those subject to work product privilege. Thus, the motion is moot to the extent documents have been produced.

To the extent the subpoena seeks documents that were not generated by the DA, it is well settled that it is not required to produce such documents. (See *Cooley v. Superior Court* (2006) 140 Cal.App.4th 1039, 1041) Regarding the work product privilege, the DA has established attorney Jennifer Bennett's notes and related materials are privileged.